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April 17, 2025

AS AMENDED

ENGROSSED HOUSE

BILL NO. 1807

By: Newton of the House

and

Jech of the Senate

[water and water rights - metering of wells - permit
holders - use of water - Oklahoma Water Resources
Board - allocation - conservation - excessive use -
effective date]

~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.19, is amended to read as follows:

~~Section 1020.19. Upon request of a majority of the landowners residing within a basin or subbasin, the Board is authorized to require that water wells be metered and that such meters as the Board shall approve be utilized by the applicant and placed under seal, subject to reading by the agents of the Board at any time. The Board may also require that the applicant report the reading of such meters at reasonable intervals~~

A. To encourage groundwater conservation, beginning January 1, 2026, the Board shall provide a five-year flex allocation of groundwater usage based off the previously determined allocated

1 annual use of the basin or subbasin. A five-year flex allocation
2 shall not require a new permit for existing permit holders. A five-
3 year flex allocation shall be available for:

4 1. Existing permit holders for groundwater use permits in
5 basins or subbasins, based upon the maximum annual yield
6 determination at the time of the original application;

7 2. New applicants for groundwater use permits in basins or
8 subbasins based upon the current maximum annual yield determination;
9 and

10 3. New and existing applicants and temporary permit holders for
11 groundwater use permits in basins or subbasins where the maximum
12 annual yield has yet to be determined.

13 B. An applicant for a five-year flex allocation shall be
14 required to:

15 1. Submit an annual usage report of the prior year's usage from
16 a Board-approved water measurement system; and

17 2. Pay the annual groundwater permit fee.

18 C. A five-year flex allocation shall allow the permit holder to
19 exceed the determined annual allocation in any year of the five-year
20 allocation; provided, that the applicant shall adhere to the
21 cumulative annually determined allocation of the basin or subbasin
22 over the five-year period. The permit holder shall not exceed the
23 permitted annual allocation by over two hundred percent (200%) in
24 any of the five (5) years.

1 D. Nothing in this section shall apply to domestic wells.

2 SECTION 2. This act shall become effective November 1, 2025.

3 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
4 April 17, 2025 - DO PASS AS AMENDED